



INDIAN POLITY



ELECTION COMMISSION

- NATIONAL vs. STATE PARTY
- MODEL CODE OF CONDUCT

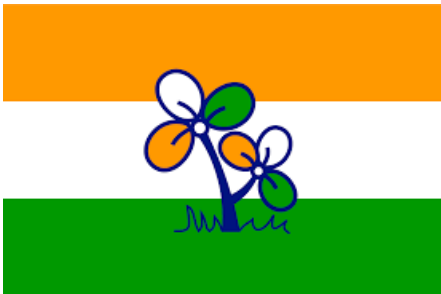
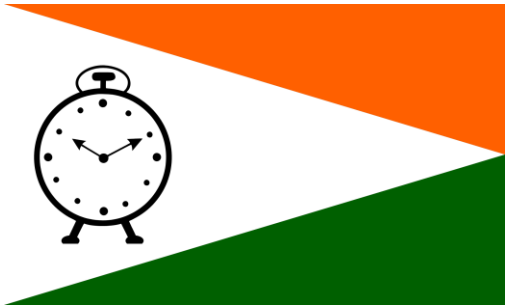


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MODULE – 98

QUALIFICATIONS FOR A POLITICAL PARTY TO BE RECOGNISED AS A NATIONAL PARTY



- A political party shall be treated as a recognized National party, if, and only if:
1. If it secures **six per cent of valid votes** polled in any four or more states at a general election to the Lok Sabha or to the legislative assembly; and, in addition, it wins **four seats** in the Lok Sabha from any state or states; or
 2. If it wins **two per cent of seats** in the Lok Sabha at a general election; and these candidates are elected from **three states**; or
 3. If it is recognised as a **state party** in four **states**.

ELECTION COMMISSION OF INDIA

QUALIFICATIONS FOR A POLITICAL PARTY TO BE RECOGNISED AS A NATIONAL PARTY



DID YOU KNOW?



- Recently, the Election Commission (EC) sought a reply from the All India Trinamool Congress (**AITC**), Communist Party of India (**CPI**) and Nationalist Congress Party (**NCP**) on why their recognition as a 'national party' status should not be withdrawn.
- Though, the EC has sought reply from these three parties, experts believe they will get ample breathing space as the EC had amended its rules in 2016, to review the status of political parties every 10 years instead of five years.

ELECTION COMMISSION OF INDIA

QUALIFICATIONS FOR A POLITICAL PARTY TO BE RECOGNISED AS A NATIONAL PARTY



DID YOU KNOW?



National People's Party (NPP)



- Meanwhile, Meghalaya Chief Minister Conrad Sangma's **National People's Party (NPP)** got the status of a 'national party'.
- It became the **eighth party** (first from the northeast) to be accorded the recognition.
- The other seven are the Congress, Bharatiya Janata Party (BJP), Bahujan Samaj Party (BSP), NCP, CPI, CPI (M) and AITC.

QUALIFICATIONS FOR A POLITICAL PARTY TO BE RECOGNISED AS A STATE PARTY

A political party, other than a National party, shall be treated as a recognized State party in a State or States, if, and only if:

1 If it secures **six per cent of the valid votes** polled in the state at a general election to the legislative assembly of the state concerned; and, in addition, it wins **2 seats** in the state assembly; or

2 If it secures **six per cent of the valid votes** polled in the state at a general election to the Lok Sabha from the state concerned; and, in addition, it wins **1 seat** in the Lok Sabha from the state concerned; or

3 If it wins **three per cent of seats** in the legislative assembly at a general election to the legislative assembly of the state concerned or **3 seats** in the assembly, whichever is more; or

4 If it wins **1 seat** in the Lok Sabha for every **25 seats** or any fraction thereof allotted to the state (at a general election to the Lok Sabha from the state concerned); or

QUALIFICATIONS FOR A POLITICAL PARTY TO BE RECOGNIZED AS A STATE PARTY



- 5 If it secures **eight per cent** of the total valid votes polled in the state at a General Election to the Lok Sabha from the state or to the legislative assembly of the state. This condition was added in **2011**.

The status of national or state party is contingent on the performance of a political party's performance in the respective elections.

QUALIFICATIONS FOR A POLITICAL PARTY TO BE RECOGNIZED AS A STATE PARTY



SUMMARY OF CONDITIONS FOR STATE PARTY

Two seats plus a 6% vote share in the last Assembly election in that state; or

One seat plus a 6% vote share in the last Lok Sabha election from that state; or

3% of the total Assembly seats or 3 seats, whichever is more; or

one of every 25 Lok Sabha seats (or an equivalent fraction) from a state; or

an 8% state-wide vote share in either the last Lok Sabha or the last Assembly polls.

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EXCLUSIVE BENEFITS ENJOYED BY THE RECOGNISED POLITICAL PARTIES

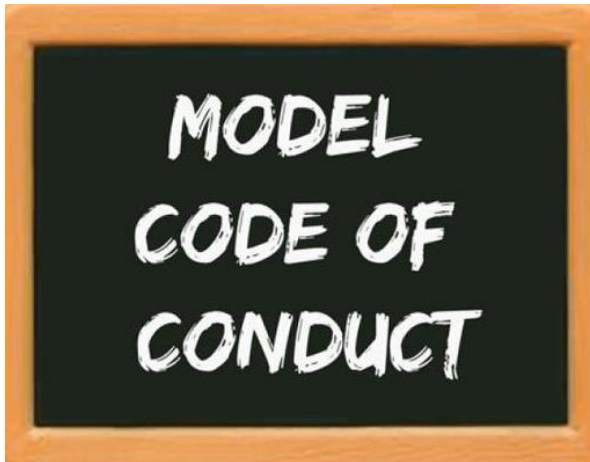
- 1 Free airtime on Doordarshan and All India Radio for election campaign.
- 2 A recognized party needs not to have to get his nomination paper **subscribed by at least 10 voters** in his constituency.
- 3 The name of the candidates nominated by the **recognized party** are organized in alphabetical order and **printed on the top** of Ballot paper followed by candidates nominated by registered party and independent candidates.
- 4 Entitled for **free supply of certain materials** like such number of copies of electoral rolls.
- 5 If a candidate nominated by a recognized party **passes away** before the commencement of the polling then the election shall be adjourned and the political party concerned will be **given one week time to re-nominate a candidate** and there after the election process will be completed.
- 6 Recognized political parties are entitled to the **allotment of symbols** given for its exclusive use.
- 7 A recognized National or State party can have a **maximum of 40 “Star campaigners”** and a registered un-recognised party can nominate a maximum of **20 “Star Campaigners”**.



ELECTION COMMISSION OF INDIA

MODEL CODE OF CONDUCT

IMPORTANT QUESTIONS



MODEL
CODE OF
CONDUCT

MAINS GS PAPER - II

- 1** *Explain the concept of model code of conduct along with its evolution. Also describe the effects of applying the model code of conduct as well as its enforcement.*
- 2** *Comment on the legal status of model code of conduct. In what way can the MCC be made more effective?*

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MODEL CODE OF CONDUCT

WHAT IS MCC?

- The MCC is a set of norms that originated with the **consensus of political parties** for the smooth and peaceful conduct and behavior on the part of the parties and candidates, in particular.
- This envisages a level playing field for the contestants for all political parties.

MODEL
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CONDUCT

NEED FOR MCC

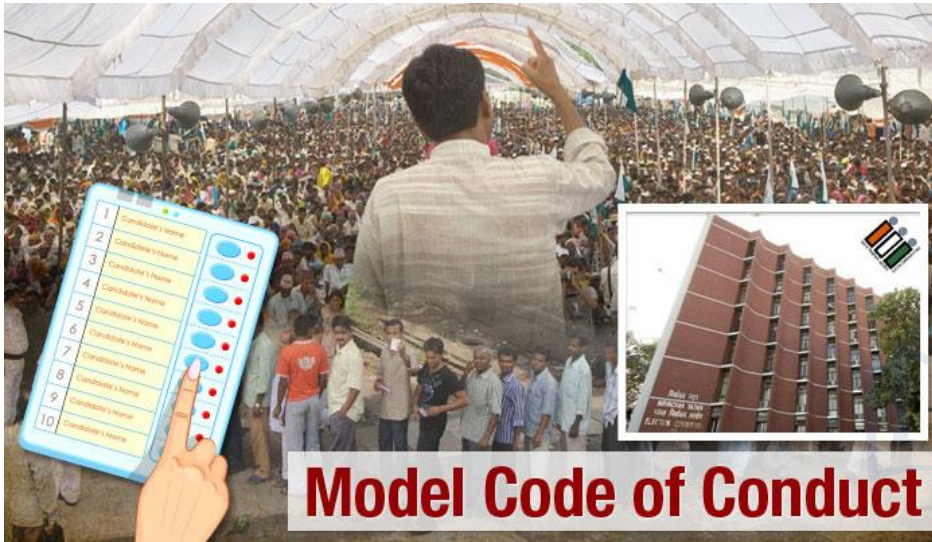
The need of MCC is felt for the following reasons:

- i. To provide a **level playing field** for all political parties, **keep the campaign fair and healthy**, avoid clashes and conflicts between parties, and ensure peace and order.
- ii. To ensure that the ruling party, either at the Centre or in the states, **does not misuse its official position** to gain an unfair advantage in an election.

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MODEL CODE OF CONDUCT

EVOLUTION OF MCC



- 1 The origin of the MCC dates back to 1960s when the MCC started as a small set of Dos and Don'ts for the Assembly election in Kerala in 1960.

- 2 In 1962 Lok Sabha General Elections, the Commission circulated this code to all the recognized political parties and the State Governments were requested to secure the acceptance of the Code by the Parties.

- 3 Report received after the 1962 general election showed that the Code was followed by and large.

- 4 In 1967, the Code was followed in the Lok Sabha and Assembly elections.

- 5 The Model Code of Conduct was consolidated and issued in the current form in 1991.

ELECTION COMMISSION OF INDIA

MODEL CODE OF CONDUCT

EFFECTS OF APPLICATION OF MCC

Model Code of Conduct



1

The present code contains guidelines for general conduct of political parties and candidates:

- No attack on **private life**
- No appeal to **communal feelings**
- Discipline and **decorum** in meetings and processions
- Guidelines for party in power – **official machinery** and facilities not to be used for electioneering
- **Prohibition** against Ministers and other authorities in **announcing grants, new schemes** etc.

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MODEL CODE OF CONDUCT

EFFECTS OF APPLICATION OF MCC



- 2 Ministers and those holding public offices are not allowed to **combine official visits** with electioneering tours.
- 3 Issue of advertisements at the cost of **public exchequer** is prohibited.
- 4 Grants, **new schemes / projects** cannot be announced
- 5 It is through such restrictions that the **advantage of being in power is blunted** and the contestants get the opportunity to fight on more or less equal terms.

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MODEL CODE OF CONDUCT

ENFORCEMENT OF MCC



- 1 MCC has got the judicial recognition of the highest court of land.
- 2 The apex court gave the ruling that the Code of Conduct would come into force the moment the Commission issues the press release, which precedes the notification by a good two weeks.
- 3 This ruling lay at rest the controversy related to the dates of enforcement of MCC.

Thus the MCC remains in force from the date of announcement of elections till the completion of elections.

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MODEL CODE OF CONDUCT

IS MCC A HINDRANCE IN DEVELOPMENTAL ACTIVITIES?



1 One often gets to hear the complaint that the MCC is coming in the way of developmental activities.

2 However, even during the short period when MCC is in operation, the **ongoing development activities** are not stopped and are allowed to proceed unhindered.

3 Only the **new projects** which have not taken off on the ground that have to be deferred till the completion of elections.

4 If there is any **work that cannot wait for any reason** (relief work on account of any calamity, etc.), the matter can be referred to the Commission for clearance.

ELECTION COMMISSION OF INDIA

MODEL CODE OF CONDUCT

WHAT ABOUT THE LEGAL STATUS OF MCC?



- 1 The Model Code of Conduct does not have a statutory backing.
- 2 It is more a **consensus driven code** arrived at after consultation with all political parties to ensure free and fair elections and to see that the ruling party does not misuse its dominant position.
- 3 The **Parliamentary Standing Committee on Law and Justice** recommended in its 2013 report that statutory status be accorded to the MCC.

ELECTION COMMISSION OF INDIA

MODEL CODE OF CONDUCT

WHAT ABOUT THE LEGAL STATUS OF MCC?



4 The committee held that most of the stipulations of the MCC are **already contained in various laws** and are therefore enforceable anyways.

5 For example- the violation of secrecy of voting, causing enmity among communities, the prohibition of public meetings 48 hours prior to the conclusion of polls, besides other offences, are covered by the **Representation of People Act, 1951.**

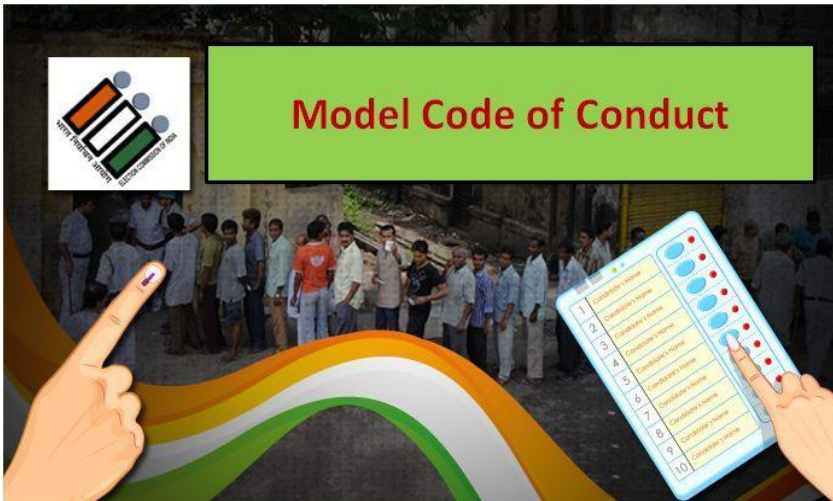
6 Besides, impersonation at voting, offering inducements to voters, or accepting gratification to do something they never intended, amount to bribery under the **Indian Penal Code.**

ELECTION COMMISSION OF INDIA

MODEL CODE OF CONDUCT

WHAT ABOUT THE LEGAL STATUS OF MCC?

7 On the basis of the above, the Standing Committee contends that the **MCC as a whole could not be construed merely as voluntary** in its application.



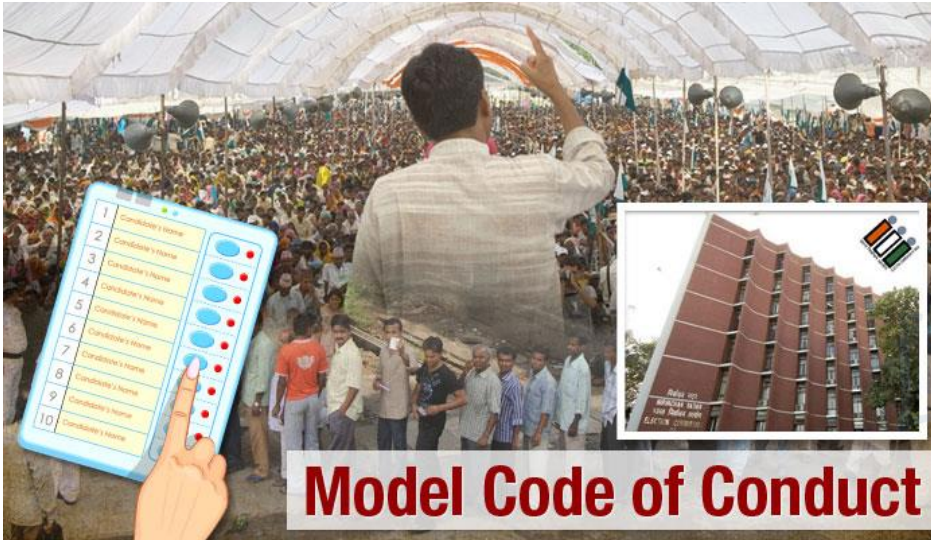
8 Furthermore, since most of its provisions are enforceable, the **remaining stipulations in the MCC** should also be accorded statutory backing.



ELECTION COMMISSION OF INDIA

MODEL CODE OF CONDUCT

THE LOGIC AGAINST GIVING LEGAL STATUS TO MCC



- 1 The decision making power will go to the **Judiciary** and thus the swiftness, expedition and promptness in dealing with the cases of violation of MCC will be gone.

- 2 If the model code of conduct is converted into a law, this would mean that a **complaint** would lie to the **police/Magistrate**.
- 3 The procedures involved in judicial proceedings being what they are, a decision on such complaints would most likely come only long after the election is completed.
- 4 The legal codification of these norms would be a potential nightmare, **exposing the entire electoral process to needless litigation**.
- 5 The middle view given by experts is that broad objectives of MCC are best achieved by oversight of an impartial election watchdog.

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